

HOUSE BILL 1783

By Butler

AN ACT to amend Tennessee Code Annotated, Title 37,
Chapter 1, Part 1, relative to court-appointed
special advocates.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-1-149(b), is amended by deleting subdivision (2) and substituting:

(2) A court may order or direct a court-appointed special advocate to conduct an investigation and make reports and recommendations pertaining to the welfare of a child as follows:

(A) The sole purpose of appointing a court-appointed special advocate is to provide an additional, but independent, source of factual information to the judge and other parties and thus providing the most comprehensive, accurate, complete, and timely information for a judicial officer to consider in making initial, intermediate, or final decisions as to the placement, custody, and future of a child and family involved;

(B) Upon request of the court-appointed special advocate, the department shall provide full, accurate, complete, unrestricted, and unredacted access to originals or copies of all current and historical information in the department's possession, whether authored by the department or another source, regarding the child, parents, or other person or organization identified by the court-appointed special advocate as having information pertinent or with personal relevance to the investigation within ten (10) business days of the request being made;

(C) A department, administrative agency, school, clerk of the court, organization, or law enforcement agency of this state shall provide full, accurate, complete, unrestricted, and unredacted access to originals or copies of all information it possesses regarding the child, parents, or other persons or organizations identified by the court-appointed special advocate as having information about or being pertinent to the instant case within ten (10) business days of the request being made. Information held by any law enforcement agency with regard to a current, active, or ongoing criminal investigation is exempted from the requirements in this subdivision (b)(2)(C); and

(D) Unless an attorney is assigned or engaged to assist or represent the court-appointed special advocate, the court supervising the case shall create an active mechanism through which the court-appointed special advocate may obtain process for records or testimony not obtainable by other means.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.